Lumen Workforce Cloud Subscription Agreement

Software as a Service Subscription Agreement · SUB-2026-0712

Between	Trellis Industries Pvt Ltd (customer)
and	Lumen Workforce Analytics Pte Ltd (supplier)
Commencement	1 Jul 2026
Expiry	30 Jun 2028
Executed	12 Jun 2026

Read or listen to the summary

Scan with any phone camera. Plain-language answers to what this agreement actually does, the dates that matter, and a spoken brief. No app, no sign-in, nothing to install.

https://chimade-iot.github.io/sara/p4w8ty2m/

Illustrative document prepared for demonstration. The parties, figures and addresses are invented.

SOFTWARE AS A SERVICE SUBSCRIPTION AGREEMENT

THIS SUBSCRIPTION AGREEMENT is made on 12 June 2026

BETWEEN:

TRELLIS INDUSTRIES PRIVATE LIMITED, a company incorporated under the Companies Act, 2013 (CIN U29100PN2011PTC139620) and having its registered office at Plot 14, Hinjawadi Phase II, Pune 411057, India (the "Customer"); and

LUMEN WORKFORCE ANALYTICS PTE. LTD., a company incorporated in the Republic of Singapore (UEN 201834117R) and having its registered office at 9 Battery Road, #18-01, Singapore 049910 ("Lumen"),

WHEREAS:

1. Lumen operates a cloud-hosted workforce analytics platform known as Lumen Workforce Cloud (the "Service"), made available to subscribers on a software-as-a-service basis.
2. The Customer wishes to subscribe to the Service for use by its personnel and those of its affiliates in India.
3. The parties wish to record the terms of that subscription, including the processing of personal data relating to the Customer's personnel.

NOW IT IS AGREED as follows:

1. Definitions and interpretation

1.1 In this Agreement, "Affiliate" means an entity controlling, controlled by or under common control with a party; "Customer Data" means all data uploaded to or generated within the Service by or on behalf of the Customer, including personal data relating to its personnel; "Documentation" means the user and administrator guides published by Lumen; "Named User" means an individual authorised by the Customer to access the Service under a unique credential; "Order Form" means a document signed by both parties recording the commercial terms; and "Service" means the Lumen Workforce Cloud platform.

1.2 In the event of conflict, the order of precedence is: (a) the Order Form; (b) the Data Processing Addendum; (c) the body of this Agreement; (d) the Schedules. No term in any purchase order or administrative document of the Customer shall vary this Agreement.

2. The Service

2.1 Lumen grants the Customer a non-exclusive, non-transferable right for its Named Users to access and use the Service during the Term in accordance with this Agreement and the Documentation.

2.2 Lumen shall provide the Service with reasonable skill and care and in accordance with the service levels in Schedule 2 and the support terms in Schedule 3.

2.3 The Customer shall not reverse engineer, decompile, resell, sub-licence or make the Service available to any third party other than as permitted by clause 4.5, nor use it to build a competing product.

2.4 Lumen may update, modify or enhance the Service from time to time, provided that no update shall materially degrade the functionality or performance of the Service during the then-current Term. Lumen shall give the Customer not less than five (5) business days' notice of any change that requires action by the Customer's administrator.

2.5 Lumen may withdraw the Service or any material part of it on not less than twelve (12) months' written notice, in which case it shall refund a pro rata portion of any fees paid in respect of the unexpired period.

2.6 Nothing in this Agreement restricts either party from contracting with any third party, including a competitor of the other. The arrangement is non-exclusive in both directions.

3. Term and renewal

3.1 This Agreement commences on 1 July 2026 and continues for an initial term of twenty-four (24) months, expiring on 30 June 2028 (the "Initial Term").

3.2 On expiry of the Initial Term, and of each renewal term, this Agreement shall renew automatically for successive periods of twelve (12) months unless either party gives not less than sixty (60) days' written notice before the end of the then-current term.

4. Customer obligations

4.1 The Customer shall use the Service in accordance with the Documentation and the acceptable use policy in Schedule 4.

4.2 The Customer shall nominate an administrator, who shall manage Named User provisioning and shall be Lumen's point of contact for operational matters.

4.3 Each Named User credential is personal to one individual and shall not be shared. A credential may be reassigned to a replacement individual where the original user leaves the Customer's employment or changes role.

4.4 The Customer is responsible for the acts and omissions of its Named Users as if they were its own, and shall notify Lumen promptly of any unauthorised access or suspected misuse of the Service.

4.5 Affiliates of the Customer may use the Service under this Agreement, provided that their users count towards the Named User baseline and the Customer remains responsible for their compliance with this Agreement.

5. Suspension

5.1 Lumen may suspend access to the Service, in whole or in part, where continued access presents a material security risk to the Service or to other customers.

5.2 Lumen may suspend access where the Customer commits a material breach of the acceptable use policy and fails to remedy it within five (5) business days of notice.

5.3 Lumen may suspend access for non-payment of an undisputed invoice which is more than thirty (30) days overdue, having first given ten (10) days' written notice of its intention to do so. Suspension does not relieve the Customer of the obligation to pay.

6. Fees and payment

6.1 The subscription fee is ₹86,40,000 (Rupees eighty-six lakh forty thousand) per annum for a baseline of one thousand two hundred (1,200) Named Users, invoiced annually in advance. The Customer shall pay each undisputed invoice within thirty (30) days of receipt.

6.2 All fees are exclusive of goods and services tax and of any withholding required by law, which shall be dealt with in accordance with the applicable double taxation treaty.

6.3 Named Users in excess of the baseline shall be billed quarterly in arrears at the same per-user rate. Lumen shall provide a true-up statement within fifteen (15) days of each quarter end.

6.4 The Customer may reduce the Named User baseline with effect from a renewal date only, and by not more than ten per cent (10%) of the then-current baseline. A reduction in actual usage during a term does not reduce the fee.

6.5 The subscription fee is fixed for the Initial Term. Lumen may increase the fee with effect from any renewal date by not more than seven per cent (7%), on not less than sixty (60) days' written notice before the renewal date.

6.6 Interest shall accrue on undisputed sums not paid when due at one per cent (1%) per month or the maximum rate permitted by law, whichever is lower.

7. Intellectual property

7.1 As between the parties, the Customer owns all right, title and interest in Customer Data and in the reports and analytical output generated from it through the Service.

7.2 Lumen owns all right, title and interest in the Service, the Documentation and all software, models and know-how underlying them, and in any improvement to them however arising.

7.3 Lumen may collect and use aggregated and de-identified usage statistics derived from the operation of the Service, provided that such statistics do not identify the Customer, any Affiliate or any individual.

7.4 Where the Customer or any of its users provides feedback, suggestions or feature requests, Lumen may use and exploit them without restriction, obligation of confidence, attribution or compensation.

7.5 Lumen shall indemnify the Customer against any claim that the Service infringes a third party's intellectual property rights, provided the Customer notifies Lumen promptly, grants control of the defence and does not admit liability.

8. Service levels

8.1 Lumen shall make the production Service available for not less than 99.5% of each calendar month, measured in accordance with Schedule 2. Scheduled maintenance notified in accordance with Schedule 2, and unavailability caused by the Customer's systems, the Customer's network or a force majeure event, are excluded from the measurement.

8.2 Where availability falls below the target in any month, the Customer shall be entitled to a service credit calculated in accordance with Schedule 2, subject to an aggregate cap of fifteen per cent (15%) of the fee attributable to that month.

8.3 Service credits must be claimed in writing within thirty (30) days of the end of the affected month, failing which the entitlement lapses. Credits are applied against the next invoice and are not refundable in cash.

8.4 Service credits are the Customer's sole financial remedy for failure to meet the availability target, save where the failure amounts to a material breach entitling the Customer to terminate under clause 12.3.

9. Security and assurance

9.1 Lumen shall maintain an information security programme consistent with ISO/IEC 27001 and shall implement the technical and organisational measures described in Schedule 5.

9.2 Lumen shall encrypt Customer Data in transit and at rest, and shall maintain role-based access controls and audit logging.

9.3 The Customer may complete a security questionnaire once in each contract year. An on-site audit of Lumen's facilities may be conducted only following a confirmed security incident affecting Customer Data.

9.4 Lumen shall provide its annual SOC 2 Type II report to the Customer within thirty (30) days of issue, and in any event on or before 30 September in each year.

10. Data protection

10.1 In respect of personal data contained in Customer Data, the Customer is the Data Fiduciary and Lumen is a Data Processor. Lumen shall process such personal data only on the Customer's documented instructions and in accordance with the Digital Personal Data Protection Act, 2023 and the Data Processing Addendum.

10.2 Customer Data is hosted in Lumen's Singapore region. Lumen's engineering personnel in Bengaluru, India may access Customer Data for support and maintenance purposes. Lumen shall not transfer Customer Data to any other jurisdiction without the Customer's prior written consent.

10.3 Lumen shall not engage any sub-processor in respect of Customer Data without the Customer's prior written consent, and shall impose on each approved sub-processor obligations no less protective than those in the Data Processing Addendum.

10.4 Lumen shall notify the Customer without undue delay, and in any event within forty-eight (48) hours, of becoming aware of any personal data breach affecting Customer Data, and shall provide such information and assistance as the Customer reasonably requires to discharge its own obligations under applicable law.

10.5 Lumen shall assist the Customer in responding to requests from Data Principals and from the Data Protection Board of India, at no additional charge where the request arises from Lumen's processing.

11. Limitation of liability

11.1 Subject to clauses 11.2 and 11.3, each party's total aggregate liability arising out of or in connection with this Agreement shall not exceed the fees paid or payable in the twelve (12) months immediately preceding the event giving rise to the claim.

11.2 Neither party shall be liable for indirect or consequential loss, or for loss of profit, revenue, anticipated savings or goodwill, whether direct or indirect.

11.3 Nothing in this Agreement limits liability for death or personal injury caused by negligence, for fraud, for breach of clause 10 (Data protection), for breach of confidence, for infringement of the other party's intellectual property rights, or for the Customer's obligation to pay the fees.

12. Termination

12.1 Neither party may terminate this Agreement for convenience during the Initial Term. After the Initial Term, either party may terminate with effect from a renewal date by giving notice in accordance with clause 3.2.

12.2 Either party may terminate immediately on written notice if the other becomes insolvent, enters liquidation or judicial management, or is the subject of an order admitting an application under the Insolvency and Bankruptcy Code, 2016 or any equivalent Singapore legislation.

12.3 Either party may terminate immediately on written notice if the other commits a material breach which is capable of remedy and fails to remedy it within thirty (30) days of written notice, or commits a material breach not capable of remedy.

12.4 The Customer may terminate without penalty under clause 17.3 where a change to the standard terms materially and adversely affects it.

13. Consequences of termination

13.1 On termination or expiry, the Customer's right to access the Service ceases immediately, save as provided in clause 13.2.

13.2 Lumen shall make Customer Data available for export in a documented, machine-readable format for a period of sixty (60) days after the effective date of termination, at no additional charge.

13.3 At the end of that period Lumen shall delete all Customer Data within thirty (30) days and shall certify the deletion in writing, save for copies required to be retained by law or held in routine backup, which shall remain subject to clause 14.

13.4 Termination shall not affect any right or remedy which accrued before the effective date, nor the Customer's obligation to pay fees for the period up to that date.

13.5 Clauses 1, 7, 11, 13, 14 (for five (5) years), 16 and 18 survive termination or expiry. The service levels in Schedule 2 and the credit mechanism in clause 8 do not.

14. Confidentiality

14.1 Each party shall keep confidential all information of the other designated as confidential or which would reasonably be regarded as confidential, and shall not disclose it except to personnel and advisers who need to know it for the purposes of this Agreement.

14.2 The obligation does not apply to information which is or becomes public otherwise than by breach, was lawfully held before disclosure, or is required to be disclosed by law or a competent authority, provided that the disclosing party gives such notice as it lawfully may.

15. Force majeure

15.1 Neither party shall be liable for any failure or delay in performance to the extent caused by an event beyond its reasonable control, including act of God, flood, fire, epidemic, war, civil unrest, failure of a public telecommunications network or act of government.

15.2 If a force majeure event affecting the Service continues for more than thirty (30) consecutive days, the Customer may terminate on written notice and shall be refunded a pro rata portion of fees paid for the unexpired period.

16. Assignment

16.1 The Customer may assign or novate this Agreement to an Affiliate on written notice to Lumen. Any other assignment or novation requires the other party's prior written consent, not to be unreasonably withheld, save that either party may assign to a successor on a merger, reconstruction or sale of substantially all of its assets without consent.

17. Changes to this Agreement

17.1 No change to the commercial terms, including the fee, the Named User baseline or the Term, shall be effective unless recorded in an Order Form signed by both parties.

17.2 Lumen may amend the standard terms of this Agreement on not less than thirty (30) days' written notice to the Customer, such notice to specify the change and the date from which it takes effect.

17.3 Where an amendment notified under clause 17.2 materially and adversely affects the Customer, the Customer may terminate this Agreement without penalty by notice given within thirty (30) days of the notice of amendment. If the Customer does not give such notice, it shall be deemed to have accepted the amendment.

18. Governing law and disputes

18.1 This Agreement and any dispute arising out of or in connection with it are governed by the laws of Singapore.

18.2 Any dispute shall be referred to and finally resolved by arbitration administered by the Singapore International Arbitration Centre under the SIAC Rules in force at the time, before a sole arbitrator, the seat of arbitration being Singapore and the language English.

18.3 Nothing in this clause prevents either party from seeking urgent interim relief from a court of competent jurisdiction.

19. Notices

19.1 Notices shall be in writing and sent to the addresses in Schedule 6 by hand, by internationally recognised courier, or by electronic mail to the addresses nominated for that purpose. Notice by

electronic mail is effective for all purposes under this Agreement, including notices of breach and termination.

19.2 A notice sent by electronic mail is deemed received on the next business day in the recipient's jurisdiction.

20. General

20.1 This Agreement, together with the Order Form, the Data Processing Addendum and the Schedules, constitutes the entire agreement between the parties and supersedes all prior discussions.

20.2 Nothing in this Agreement creates a partnership, joint venture or relationship of employer and employee.

20.3 If any provision is held invalid or unenforceable it shall be severed and the remainder shall continue in full force.

20.4 A person who is not a party to this Agreement has no right to enforce any of its terms.

Schedule 1 — The Service

Lumen Workforce Cloud: headcount and attrition analytics, workforce planning, compensation benchmarking and statutory reporting modules, delivered through a web application and documented REST API.

Included: unlimited report generation, standard integrations with the Customer's human resources information system, and the support described in Schedule 3. Not included: bespoke development, data migration beyond the standard importer, and on-site training, each of which is chargeable as professional services under a separate Order Form.

Schedule 2 — Service levels

Availability target: 99.5% of each calendar month, measured as the proportion of five-minute intervals in which the production service responded successfully to Lumen's external monitoring.

Service credits: 2% of the monthly fee for each 0.1 percentage point below target, to an aggregate maximum of 15% of the monthly fee.

Scheduled maintenance: up to four (4) hours per month, outside 07:00 to 21:00 India Standard Time, on not less than five (5) business days' notice. Emergency maintenance may be carried out on shorter notice where required to address a security vulnerability.

Exclusions: unavailability caused by the Customer's systems or network, by the Customer's breach of this Agreement, or by a force majeure event.

Schedule 3 — Support

Severity 1 (production unavailable): 24x5 coverage, one (1) hour response target, continuous effort until resolved or a workaround is in place.

Severity 2 (material function impaired): 24x5 coverage, four (4) hour response target.

Severity 3 and 4: business hours, one (1) and three (3) business day response targets respectively.

Support is provided in English through Lumen's ticketing portal and is included in the subscription fee.

Schedule 4 — Acceptable use policy

The Customer shall not use the Service to store or transmit unlawful material; to attempt to gain unauthorised access to the Service or to any other customer's data; to conduct penetration testing without Lumen's prior written consent; to share Named User credentials; or to upload special category personal data beyond that necessary for the agreed workforce analytics purposes.

Lumen shall notify the Customer of any suspected breach and, save where immediate suspension is necessary under clause 5.1, shall allow five (5) business days for remedy.

Schedule 5 — Technical and organisational measures

Encryption of Customer Data in transit (TLS 1.2 or higher) and at rest (AES-256). Role-based access control with least privilege. Multi-factor authentication for all administrative access. Audit logging retained for twelve (12) months. Annual penetration testing by an independent third party. Documented business continuity and disaster recovery plans, tested annually, with a recovery time objective of four (4) hours and a recovery point objective of one (1) hour. Background verification of personnel with access to Customer Data.

Schedule 6 — Notice addresses

For the Customer: The Company Secretary, Trellis Industries Private Limited, Plot 14, Hinjawadi Phase II, Pune 411057, India. Electronic mail: legal@trellis.example.

For Lumen: The Legal Department, Lumen Workforce Analytics Pte. Ltd., 9 Battery Road, #18-01, Singapore 049910. Electronic mail: legal@lumenworkforce.example.

IN WITNESS WHEREOF the parties have executed this Agreement on the date first written above.

For and on behalf of
Trellis Industries Pvt Ltd

For and on behalf of
Lumen Workforce Analytics Pte Ltd

Illustrative document. Not a real agreement.